TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR

Judge Jonathan Fish

August 17, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- Civil Court Reporter Pooling;
- Please see the Court's website at Court Reporter Interpreter Services for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	Biocorrx, Inc. vs. VDM Biochemicals, Inc. 2021-01195606	Motion to Compel Compliance with Court Order Dated April 10, 2025 Motion to Compel Compliance Motion to Compel Deposition (Oral or Written) Motion to Quash Motion to Strike Portions Of Cross-Complaint Motion to Vacate Currently Notice Hearing Motion For Leave to File Third Amended Cross-Complaint **Motion to Strike Portions of Second Amended Cross-Complaint** **Motion for Leave to file Third Amended Cross-Complaint** **Motion to Vacate Hearing Date** **Motion to Compel Compliance with Court Order** **Motion to Compel Compliance** **Motion to Compel Deposition** **Motion to Quash** The motion by Plaintiff/Cross-Defendant BioCorRx, Inc. and Cross-Defendants Brady Granier ("Granier"), BioCorRx Pharmaceuticals, Inc., Jeffrey M. Witkin, and Joseph Galligan (collectively, "BioCorRx Parties") for an order striking paragraphs 138, 141, and 156 and the referenced Exhibit K from the Second Amended Cross-Complaint ("SAXC") filed by Defendant/Cross-Complainant VDM Biochemicals, Inc. ("VDM") is GRANTED. VDM's motion for leave to file the proposed Third Amended Cross-Complaint is DENIED. The

motion by VDM and Defendant David Martirosyan (collectively, "Defendants") for an order vacating the hearing date on Cross-Defendants two motions to compel (ROA No. 679 and 761) scheduled for October 27, 2025 is MOOT. The parties are ordered to appear and be prepared to discuss the scheduling of the following motions: Granier's motion to compel Defendant Martirosyan and VDM's compliance with this Court's April 10, 2025 Order; Granier's motion to compel compliance with the agreement of Defendants David Martirosyan and VDM; Plaintiff BioCorRx, Inc.'s motion to compel third party Dr. Vardan Martirosyan to sit for his deposition and produce documents and request for sanctions; and the motion by specially appearing Cross-Defendant Louis C. Lucido ("Lucido") to quash the summons served on Lucido.

MOTION TO STRIKE

Pursuant to Code of Civil Procedure section 436, the Court may:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

"The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437, subd. (a).)

"[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Paragraphs 138 and 141 and Exhibit K

The Court has already found the allegations in paragraphs 138 and 141 and the information in Exhibit K to be protected by the attorney-privilege. The Court placed the unredacted SAXC under seal and ordered VDM to file a redacted SAXC that redacts paragraphs 138, 141, and Exhibit K. (August 18, 2025 Minute Order.) The motion to strike these two paragraphs and Exhibit K is granted without leave to amend.

Paragraph 156

Paragraph 156 alleges Plaintiff’s subsidiary BioCorRx Pharmaceuticals purchased a brand name prescription medication called Lucemyra and the consideration paid. VDM did not show how this drug or the allegations support the sixth cause of action for violation of B&P sections 17200 and 17500 (or any other cause of action alleged in the SAXC). Accordingly, the motion is granted with 15 days leave to amend. The Court reminds the parties that leave to amend is limited to the purpose of alleging BioCorRx entities and VDM are competitors operating in the same therapeutic space and operate in the same market segment, which VDM contends is the purpose of the allegations in paragraph 156. (Opposition, 5:6-25.)

MOTION FOR LEAVE TO FILE TAXC

VDM seeks leave to file a third amended cross-complaint ("TAXC"). VDM's proposed TAXC adds factual allegations to support VDM's fraud cause of action against Lucido and Galligan, deletes the seventh cause of action for statutory unfair competition under California Business and Professions Code sections 17200 and 17500, and adds a new cause of action for misappropriation of trade secrets in violation of Civil Code sections 3426-3426.11.

Motions for leave to amend pleadings are directed to the sound discretion of the court. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc., § 473, subd. (a)(1); *see also* Code Civ. Proc., § 576.)

The liberal policy of permitting amendments is not without limitation or qualification. The policy of liberality in permitting amendments applies only where no prejudice is shown to the adverse party. An opposing party which can show inexcusable delay and probable prejudice leads to a denial of the motion to amend. (*Magpali v. Farmers Grp., Inc.* (1996) 48 Cal.App.4th 471, 486-487; *see also Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.)

The motion must be accompanied by a copy of the proposed amended pleading and a supporting declaration explaining: "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Ct., Rule 3.1324(b).)

The motion must state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and what allegations are proposed to be added to the

			previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Ct., Rule 3.1324(a)(2)-(3).) "A plaintiff or cross-complainant may not seek to subvert or avoid a ruling on an anti-SLAPP motion by amending the challenged complaint or cross-complaint in response to the motion." (*JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477-478.) A pleading that "is stricken by a successful anti-SLAPP motion cannot try again with an amended complaint. There is no such thing as granting an anti-SLAPP motion with leave to amend." (*Dickinson v. Cosby* (2017) 17 Cal.App.5th 655, 676.) An "anti-SLAPP is designed as a final remedy with no second chances." (*Id*., at 679.) However, claims that are "unaffected by the anti-SLAPP motion might be able to go forward." (*Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2018) 4 Cal.5th 637, 646.) VDM's motion for leave seeks to remove language from the SAXC to comply with the Court's disqualification order, delete the seventh cause of action for unfair competition, and replace it with a cause of action for misappropriation of trade secrets in violation of California Civil Code sections 3426 through 3426.11. (Thomas Decl., ¶¶ 5-6.) The proposed TAXC also adds additional factual allegations against Lucido and Galligan; however, that is not discussed in the supporting declaration or memorandum. (*Id*., Exhibit B, ¶¶ 14, 18, 84, 85, and 138.) VDM concedes that "[a]t most, then, the amendment removes one alternative prong-one argument—the one built on the very material Cross Defendants have moved to strike and redacted from their own public filing." (Reply, 4:20-22.) VDM also previously informed Cross-Defendants that the

			TAXC would moot the anti-SLAPP. (Katz Decl., ¶2, Exhibit A, Section B [at page 5 of PDF].) The new allegations attempt to establish personal liability against Galligan and Lucido and support the fourth cause of action for fraud, which the Court found is subject to SLAPP. Accordingly, the motion to add the additional factual allegations is denied. VDM contends the proposed deletions are the same as the paragraphs at issue in the disqualification motion and the same as the proposed paragraphs Cross-Defendants sought to strike in their motion to strike. On August 18, 2025, the Court granted Plaintiff's motion to seal and placed VDM's unredacted SAXC under seal and ordered VDM to file a redacted SAXC that redacted paragraphs 138, 141, and Exhibit K. (August 18, 2025 Minute Order.) The Court's March 16, 2026 Order granting the disqualification motion also references Exhibit 6 in Exhibit K. In light of the ruling above, the motion for leave to delete the paragraphs that the Court found was privileged is denied as moot. The Court notes the proposed TAXC includes a redacted copy of Exhibit K, with exhibit 6 redacted, but still references Exhibit K in the TAXC. The hearing on this motion was continued to allow VDM to comply with Rule 3.1324. VDM's supplemental papers fail to sufficiently address VDM's request to replace the seventh cause of action for statutory unfair competition under California Business and Professions Code sections 17200 and 17500 with a new cause of action for misappropriation of trade secrets in violation of Civil Code sections 3426-3426.11. Although VDM included the language to be deleted and added for the seventh cause of action, and noted the addition in the supporting and supplemental declarations, VDM did not otherwise comply with Rule 3.1324 with respect to the replacement of the seventh cause of action. VDM's supporting and supplemental declarations stated the effect of

the amendment was to remove the statutory unfair competition cause of action and replace it with a cause of action for misappropriation of trade secrets. (Thomas Decl., ¶ 6; Thomas Supp. Decl., ¶ 6.) VDM did not address why this amendment is necessary and proper, when facts giving rise to the amended allegations were discovered, why the request for amendment was not made earlier.

Accordingly, VDM's motion is denied.

MOTION TO VACATE HEARINGS

The motion by VDM and Martirosyan (collectively, "Defendants") for an order continuing two hearings that were scheduled for October 27, 2025 is MOOT. On October 21, 2025, the Court continued these two hearings at issue pursuant to the parties' stipulation. (ROA No. 986.)

MOTION TO COMPEL COMPLIANCE WITH COURT ORDER, MOTION TO COMPEL COMPLIANCE WITH AGREEMENT, MOTION TO COMPEL DEPOSITION, MOTION TO QUASH

The parties disagree with when the anti-SLAPP discovery stay was lifted and when opposition and reply papers must be filed for Granier's two motions to compel compliance.

On July 14, 2025, the Court continued Lucido's motion to quash service of VDM's summons and cross-complaint to allow VDM to conduct limited discovery on jurisdiction. VDM requires time to conduct discovery limited to jurisdiction of Lucido due to the stay arising from Galligan and Lucido's filing of their anti-SLAPP.

Plaintiff BioCorRx, Inc.'s motion to compel third party Dr. Vardan Martirosyan is also continued to allow Plaintiff an opportunity to properly serve the nonparty deponent with notice of the hearing and the moving papers.

The parties are ordered to appear to discuss the rescheduling of these four motions. Briefing will be per Code based on the continued hearing dates.

The Court also notes that on May 29, 2025, the Court ordered:

1) All parties to meet and confer regarding a potential discovery referee;
2) BIOCORRX to produce a proposed order for the Court's Issuance of an Order Appointing a Discovery Referee for all purposes related to discovery (now and hereafter) per CCP sect. 639 et seq.;
3) BIOCORRX to include in the proposed order the exceptional circumstances that give rise to the appointment of discovery referee per CCP sect. 639, Cal Rules of Ct. 3.922(d)(1), 3.922(d)(2), 3.922 (e) and 3.922(f)(1).
4) BIOCORRX to file this with the court with a "courtesy copy" no later than July 7, 2025.
5) All parties to jointly produce the name of an agreed upon discovery referee with his/her hourly cost. If the parties are unable to agree, each side (not party) are ordered to give no more than three possible names with their attendant hourly cost. This was due no later than July 7, 2025.

A copy of this Minute Order was served on the parties on May 30, 2025.

		The parties should be prepared to discuss the status of their meet and confer efforts and how much additional time is necessary to comply with the above Order.
2	CCS Contractor Equipment & Supply, LLC vs. KB Steel & Building Products, a California corporation 2025-01490912	Motions to Compel Further Responses to Form Interrogatories Defendant/Cross-Complainant KB Steel & Building Products' ("KB Steel") motions to compel further responses from Plaintiff/Defendant CCS Contractor Equipment & Supply, LLC ("CCS"), to KB Steel's first sets of form interrogatories and special interrogatories are granted in part and denied in part. The Court denies the request for orders compelling further responses. The Court grants the request for monetary sanctions and awards $3,600 in reasonable attorneys' fees and costs per motion. The Court denies KB Steel's request for orders compelling further responses, because CCS served substantive, supplemental responses on June 30, 2026. (ROA 98, 100 [Delaney Decls. at ¶ 19, Exh. H].) The Court notes that there is no separate statement that compares the text of each interrogatory with the text of each response or *further response*. (Cal. R. Ct. Rule 3.1345, subd. (c).) Regardless, the Court disagrees with KB Steel's contention that CCS should be compelled to serve further responses without objections; CCS properly preserved its objections when serving its original responses. With respect to monetary sanctions, the Court finds CCS has not shown it acted with substantial justification or that other circumstances that would make the imposition of sanctions unjust. (Code Civ. Proc., § 2030.300, subd. (d).) The interrogatories were served in August 2025, and CCS did not serve substantive responses until approximately 10 months later. If CCS truly could not provide substantive responses any earlier, it could have sought a motion for protective order. In connection with the motions, the Court awards KB Steel reasonable monetary sanctions in the total amount of $7,200, against CCS. The sanctions are payable within 30 days to KB Steel's counsel, Faegre Drinker Biddle & Reath LLP.

		KB Steel shall give notice of the ruling.
3	Comer vs. Mercury Insurance Company 2023-01322938	Motion for Summary Judgment and/or Adjudication Defendant Mercury Insurance Company's motion for summary adjudication as to Plaintiff James Comer's first cause of action in his Second Amended Complaint ("2AC") for breach of the covenant of good faith and fair dealing is granted. Defendant's request for judicial notice of Documents 1-5 is granted. Defendant's evidentiary objections are not compliant with CRC, Rule 3.1354(b), as Defendant objected to portions of Plaintiff's separate statement. Objections to "undisputed material facts" as opposed to "evidence" are not proper. Indeed, some of the objections are not even to actual evidence. Notwithstanding this, the Court declines to rule on the objections pursuant to Code Civ. Proc., § 437c(q). "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff's allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield*

Co., supra, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; see *Scheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding *Union Bank* rule only applies where discovery requests are broad enough to elicit all such information].) Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at p. 850.)

"The covenant of good faith and fair dealing, implied by law in every contract, exists merely to prevent one contracting party from unfairly frustrating the other party's right to receive the benefits of the agreement actually made." (*Guz v. Bechtel Nat. Inc*. (2000) 24 Cal.4th 317, 349.) The implied covenant cannot be extended to create obligations not contemplated by the contract. (*Racine & Laramie v. Department of Parks and Recreation* (1992) 11 Cal. App. 4th 1026, 1031-32; *Foley v. Interactive Data Corp.* (1988) 47 Cal.3d 654, 690.)

In bad faith insurance cases, a breach of the covenant of good faith and fair dealing permits a tort recovery. (*Cates Construction, Inc. v. Talbot Partners* (1999) 21 Cal.4th 28, 43.)

To establish a "bad faith" claim in first party cases, it must be shown that the insurer's delay or withholding of benefits was unreasonable, i.e., without any reasonable basis for the insurer's position or without proper cause. (*Jordan v. Allstate Ins. Co.* (2007) 148 Cal. App. 4th 1062, 1072–73.) Where there is a genuine issue as to the insurer's liability under the policy for the claim asserted by the insured, there can be no bad faith liability imposed on the insurer for advancing its side of that dispute. (*Id*. at 1072.)

In his lawsuit, Plaintiff alleges that Defendant's failure to turnover to Plaintiff some of the money from Hartford (third-party tortfeasor Annette Medrano's insurer) to reimburse Plaintiff for his diminution of value/loss of use damages constitutes bad faith.

Specifically, Plaintiff alleges in his 2AC with respect to the first cause of action, that had Mercury informed Plaintiff that its receipt of subrogation from Hartford would result in a loss of benefits (the full amount of Plaintiff's diminished value claim), Plaintiff would have submitted his property damage claim to Hartford in a timely matter, such that he would have priority over Mercury's subrogation claim.

(2AC, ¶ 33.) Plaintiff alleges that starting in August of 2022, Defendant breached the duties of good faith and fair dealing by concealing and misleading Plaintiff about its subrogation proceedings, and the need for Plaintiff to submit his damage claim to Hartford before 11/11/22. (2AC, ¶ 35.)

These allegations are not borne out by the evidence.

At his deposition, Plaintiff testified that the repairs to his vehicle were completed in approximately the middle of September 2022 and that he was impressed with and satisfied with the quality of the repair work. (UMF 6.) Plaintiff does not contend Mercury refused to repair the vehicle, failed to pay covered collision repair benefits, or delayed payment of those benefits. (UMF 9.)

Plaintiff additionally testified that - contrary to the allegations in the SAC that Plaintiff advised Mercury he intended to submit a diminished value claim to Hartford on 8/16/22 - when he spoke with Mercury in July and August 2022, he did not have a diminished-value claim and only asked about the topic. He retained an appraiser only after repairs were completed and did not submit a claim to Hartford until February 2023. (UMF ¶¶17-18, 25-27; PSS ¶¶ 65, 69.)

Thus, the evidence establishes, counter to Plaintiff's arguement, that Mercury did not know that Plaintiff had an outstanding claim for diminished value that it intended to submit to Hartford. Plaintiff's 8/16/22 inquiry does not demonstrate an existing claim, its amount, its validity, or Mercury's knowledge that Plaintiff intended to pursue one. Plaintiff testified that at the time, he did not have a claim and, in fact, did not submit one until February 2023. (UMF 25, 26.) No legal authority is provided to support Plaintiff's position that Defendant's actions were unreasonable, i.e., that Defendant should have delayed its subrogation recovery until and if Plaintiff were to assert a claim with Hartford.

Plaintiff cites to *Hibbs v. Allstate Ins. Co*. (2011) 193 Cal.App.4th 809 and *Barney v. Aetna Casualty & Surety Co*. (1986) 185 Cal.App.3d 966.

Hibbs is not applicable here; the facts are distinguishable. In Hibbs, the insurer voluntarily paid for repairs to which the insured did not consent. The Court held that the insurer had no right to subrogation given that the repair shop was not due compensation and the payment made to the repair shop was voluntary. (*Hibbs, supra,* 193 Cal.App.4th 809 at 821.) In this case, Plaintiff consented to the repairs and testified that he was satisfied with them. (UMF ¶¶ 5-7; Plaintiff's Ex. 1, Comer Depo. 17:8-18:12.)

Barney is also distinguishable. The insurer there negotiated a settlement, exchanging the insured's right to file a counterclaim without her knowledge and consent. (*Barney, supra*, 185 Cal.App.3d at 977.) Nothing similar happened here; Defendant did nothing to prevent Plaintiff from submitting a claim with Hartford.

Plaintiff contends that the made-whole rule supports his claim, despite the evidence showing that Defendant did not withhold any benefits due under the policy. (*Love v. Fire Ins. Exchange* (1990) 221 Cal.App.3d 1136, 1151–1152 (to establish breach of the implied covenant it must be shown that benefits due were withheld).) (UMF 1-7, 9; See 2AC, Ex. 1, Defendant's Ex. 1. Comer Deposition.)

In *Chandler v. State Farm Mut. Auto. Ins. Co*. (9th Cir. 2010) 598 F.3d 1115, The court examined the question of "whether an insurer is permitted to recoup a payout from a third-party tortfeasor's insurance company before the insured has sued the third-party tortfeasor, and without first making the insured whole." (*Id*. at 1115-1116.) (This court recognizes that Federal Court decisions are not binding on this court, but can be consulted as persuasive authority and provide guidance. (See *Rubin v. Ross* (2021) 65 Cal.App.5th 153, 163.).)

The *Chandler* court stated:

> Plaintiff's position [that per the made-whole rule, his insurer, State Farm, should reimburse him for his out-of-pocket rental car costs from the proceeds that State Farm received from the third-party tortfeasor's insurance] undermines the most fundamental public policy at play in this and other cases-the principle that the person ultimately responsible for causing the damage should pay for it. In situations like the one presented here, the imposition of an obligation on an insurer to pay the insured out of proceeds obtained as reimbursement for its out-of-pocket costs in paying the policyholder's claim would confer greater rights on the policyholder than provided in the policy and eliminate any incentive on the part of the policyholder to seek reimbursement from the tortfeasor.

(*Id.* at 1116.)

As noted previously with respect to Defendant's demurrer to the 2AC, Plaintiff added an allegation that Medrano was judgment proof and thus did not pursue her for compensation for his damages. Plaintiff attaches a Lexis Nexis report on Medrano to the 2AC.

In opposition to the motion for summary adjudication, Plaintiff does not submit any additional evidence to support Medrano's lack of assets which could satisfy a judgment. Nor does Plaintiff provide information as to when it was determined that Medrano was judgment proof and when Defendant was made aware of this.

Given this, there is no evidence suggesting that Defendant acted in bad faith in pursuing Hartford for subrogation.

"There is nothing in any of the cases discussing the made-whole rule or the common-fund doctrine (part I, *ante*) that requires the insurance company to conduct an investigation before demanding repayment." (*Progressive West Ins. Co. v. Superior Court* (2005) 135 Cal.App.4th 263, 282.) Furthermore, "no case imposes a duty on the 'insurer to advise an insured of the different legal theories or statutory provisions which an insured could use to avoid policy exclusions,'" as "the insurance company is entitled to consider its own interests especially in the context of conduct it engages in after it timely pays out benefits." (*Id*. at 282 [citing *Love v. Fire Ins. Exchange* (1990) 221 Cal.App.3d 1136, 1148-1149].)

"The gravamen of a claim for breach of the covenant of good faith and fair dealing, which sounds in both contract and tort, is the insurer's refusal, without proper cause, to compensate the insured for a loss covered by the policy." (*Progressive West Ins. Co. v. Superior Court* (2005) 135 Cal.App.4th 263, 280 [citing *Brizuela v. CalFarm Ins. Co.* (2004) 116 Cal.App.4th 578, 592, 10].)

The evidence demonstrates that Plaintiff was compensated by Defendant for his losses covered by the policy. (See *Love v. Fire Ins. Exchange* (1990) 221 Cal.App.3d 1136, 1151–1152 (to establish breach of the implied covenant it must be shown that benefits due under the policy were unreasonably withheld).) Plaintiff has not identified any provision of the Mercury policy that required Mercury to pay the claimed diminished value damages.

Lastly, contrary to Plaintiff's additional argument in his opposition, there is nothing to suggest that Plaintiff's claim that Defendant failed to properly train its employees amounts to bad faith. No legal authority is cited in support of this.

		Accordingly, the Court finds that there are no triable issues of material fact as to Plaintiff's first cause of action for breach of the implied covenant of good faith and fair dealing. Defendant shall give notice.
4	Enriquez Tapia vs. Country Villa Plaza Convalescent Center 2022-01276368	Motion to Compel Production Defendant Santa Ana Healthcare & Wellness Centre LP's ("Defendant") motion to compel Plaintiff Victor E. Tapia's ("Plaintiff") response to request for statement of damages is granted. Defendant's requests for monetary and terminating sanctions are denied. <u>Request for Statement of Damages & Monetary Sanctions</u> In actions for personal injury or wrongful death, a plaintiff may not state the amount of its damages claim in the complaint. (Code Civ. Proc., § 425.10, subd. (b).) Instead, a separate statutory procedure is provided through CCP section 425.11, whereby "the defendant may at any time request a statement setting forth the nature and amount of damages being sought." In response, the plaintiff may serve a statement disclosing the amount of damages sought, and the general nature of the damages sought. The plaintiff has 15 days, after the service of request, to serve the responsive statement. If the response is not served, "the defendant, on notice to the plaintiff, may petition the court in which the action is pending to order the plaintiff to serve a responsive statement." (Code Civ. Proc., § 425.11, subd. (b).) Section 425.11 does not provide for the recovery of an award of sanctions if the defendant brings a motion to compel the plaintiff to serve a responsive statement. (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:1764 ["The statute does not provide for costs and fees in connection with such motion. And, since this procedure is outside the Discovery Act, the Act's sanctions provision (CCP § 2023.010 et seq.) *cannot* be utilized"] [emphasis in original].) Here, Santa Ana Health Care has proffered uncontroverted evidence that it properly served Plaintiff with a request for statement of damages on or about 11/12/25, to which Plaintiff failed to respond. (Kraml Decl. at ¶ 2, Exh. A.) As such, the Court orders Plaintiff to provide a responsive statement within **15 days** of the notice of ruling. However, the Court declines to award the requested monetary sanctions. In its motion, Santa Ana Health Care cites CCP section 2023.030 as the statutory authority for its sanctions request. (Mot. at

		pp. 2-3.) However, section 2023.030 is applicable only "[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title." (Code Civ. Proc., § 2023.030.) CCP section 425.11 is not a part of the Discovery Act or any other chapter governing a "particular discovery method." Rather, it is a part of Title 6, Chapter 2, which is a chapter that governs *pleadings* in civil actions. <u>Request for Terminating Sanctions</u> "Trial courts are to take an incremental approach to discovery sanctions, starting with monetary sanctions and leading up to the ultimate sanction of termination. Sanctions must be proportionate to the harm caused by the misconduct and should not provide a 'windfall' to the party requesting sanctions." (*Atlas v. Davidyan* (2025) 113 Cal.App.5th 1086, 1095 [citations omitted].) "Once a party or witness has been *ordered* to attend a deposition, or to answer discovery, or to produce documents, more severe sanctions are available for continued refusal to make discovery." (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145 [emphasis in original].) In its moving papers, Defendant fails to point out which discovery orders Plaintiff has violated. Based on the record, the Court sees no justification for resorting to the ultimate sanction of termination at this juncture. Defendant shall give notice of the ruling.
5	Gill vs. FCA US LLC 2025-01492739	Motion to Strike Portions Of Complaint / Demurrer to Amended Complaint **A. Demurrer** The Court overrules Defendant FCA US LLC's Demurrer to the sixth cause of action for fraud in Plaintiff Thomas W. Gill's First Amended Complaint (FAC). "[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or

suppression of the fact, the plaintiff must have sustained damage." (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

Fraud, including concealment, must be pled with specificity. (*Linear Technology Corp. v. Applied Materials, Inc*. (2007) 152 Cal.App.4th 115, 132.) General and conclusory allegations do not suffice. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The policy of liberal construction of pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect for allegations of fraud. (*Id*.) However, less specificity is required of fraud claims when a defendant must necessarily have more information or knowledge concerning the facts of the controversy than a plaintiff. (*Alfaro v. Community Housing System & Planning Assn., Inc*. (2009) 171 Cal.App.4th 1356, 1384.)

Defendant argues that it had no duty to disclose any purported defect to Plaintiff.

The Court finds that duty is properly alleged.

"There are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts." (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311 [internal quotations omitted.]) "Where, as here, a fiduciary relationship does not exist between the parties, only the latter three circumstances may apply. These three circumstances, however, 'presuppose[] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise." (*Ibid.*) "A duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as 'seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual arrangement.' " (*Ibid.*)

"Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a 'transaction' between the plaintiff and defendant: 'In *transactions* which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff.' " (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311 [emphasis added].) "Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." (*Id.* at 312 (cited with approval by the California Supreme Court in *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 41.)

Here, Defendant asserts there was no direct transactional relationship to establish a duty to disclose.

First, Defendant does not address the allegation Plaintiffs entered into a warranty contract with Defendant, regarding the subject vehicle. (See FAC, ¶7.)

Second, the Court in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 rejected a similar argument, finding allegations Plaintiff "bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers," sufficient. (*Id.* at p. 844.)

Here, Plaintiff has adequately pleaded that FCA had exclusive knowledge of the true extent of the E-Torque System Defect. (FAC, ¶¶31, 57, 117.) Plaintiff has sufficiently alleged the elements of a fraudulent inducement by concealment claim under *Dhital*. The Court accepts these allegations as true for purposes of this Demurrer. Further factual issues are properly left to discovery.

Thus, the Demurrer is overruled.

B. Motion to Strike

The Court grants Defendant's Motion to strike punitive damages with 20 days leave to amend.

Defendant asks the Court to strike the following:

1. All references to punitive and/or exemplary damages, including but not limited to: Page 22, line 25 – "For punitive damages".

This is the incorrect citation as there is no such request on Page 22, line 25 of the FAC. However, the Court presumes that Defendant seeks to strike punitive damages requested in the Prayer for Relief on Page 25, line 22.

A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. (Code Civ. Proc. § 436.) A motion to strike can be used to attack claims for damages that are not supported by the cause of action pleaded. (Code Civ. Proc. § 431.10(b)(3).)

Punitive Damages
Civil Code § 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. *See Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 ("The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation]."; *but see Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6 (allegations that defendant was guilty of "oppression, fraud and malice" could not be stricken where the complaint contained sufficient facts to support such allegation.).

Here, the only apparent basis for an award of punitive damages is the alleged fraudulent inducement. (See *Covert v. FCA USA, LLC* (2022) 73 Cal.App.5th 821, 828, fn. 3. ["Although not specified in the complaint, we assume Covert's prayer for punitive damages was based on his cause of action for fraudulent concealment because the Song-Beverly Act provides for civil penalties, but not punitive damages."]; see also *Troensegaard v. Silvercrest Industries, Inc.* (1985) 175 Cal.App.3d 218, 227 ["[W]e believe that by seeking a 'civil penalty' and also attorney's fees and all reasonable expenses as allowed by Civil Code section 1794, plaintiff had in effect elected to waive punitive damages under section 3294."].)

Punitive damages can be sought in a cause of action for fraudulent concealment, and punitive damages are available where a defendant is guilty of fraud. (Civ. Code, § 3294, subd. (a); see *Dhital v. Nissan North America, Inc*. (2022) 84 Cal.App.5th 828, 845 [reversing trial court's order granting motion to strike punitive damages allegations where the plaintiff stated a viable fraud claim]; see *Anderson v. Ford Motor Co*. (2022) 74 Cal.App.5th 946, 966 ["the punitive damages and statutory penalties were based on different conduct that took place at different times," as "[t]he punitive damages were based on conduct underlying the fraud/CLRA causes of action and took place before the sale," while "[t]he civil penalty was based on defendant's postsale failure to comply with its Song-Beverly Act obligations to replace the vehicle or make restitution when reasonable attempts to repair had failed"]; see *Nissan Motor Acceptance Cases* (2021) 63 Cal.App.5th 793, 829 ["Of course, fraudulent concealment is an intentional tort that may support a punitive damage award"].)

Here, Plaintiff has alleged that FCA knew about the E-Torque System Defect. Prior to purchase of the Subject Vehicle, Defendant was aware of the problems in a critical system that has serious safety implications. (FAC, ¶ 32.) A properly pleaded fraud claim will itself support recovery of punitive damages. No allegations of "malice" or intent to injure plaintiff are required, because fraud is an alternative basis for recovery. (*Stevens v. Sup. Ct. (St. Francis Med. Ctr.)*(1986) 180 Cal.App.3d 605, 610.)

However, "When the defendant is a corporation, '[a]n award of punitive damages against a corporation . . . must rest on the malice of the corporation's employees. [¶] But the law does not impute every employee's malice to the corporation.' [Citation.] Instead, the oppression, fraud, or malice must be perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent of the corporation. [Citation.] ' "[M]anaging agent" . . . include[s] only those corporate employees who exercise substantial independent authority and judgment in their corporate decisionmaking so that their decisions ultimately determine corporate policy.' [Citation.]" (*Wilson v. Southern California Edison Co.* (2015) 234 Cal.App.4th 123, 164.)

Here, corporate ratification or authorization is not alleged.

In opposition, Plaintiff also argues that he can seek punitive damages for the Song-Beverly claims.

However, the Song-Beverly Act does not provide for punitive damages. (Civ. Code, § 1794.) California courts have explained that civil penalties "have been likened, by courts, to punitive damages." (*Suman v. Superior Court* (1995) 39 Cal.App.4th 1309, 1317, citing *Kwan v. Mercedes-Benz of North America, Inc.* (1994) 23 Cal.App.4th 174, 184 ["Finally, the penalty under section 1794(c), like other civil penalties, is imposed as punishment or deterrence of the defendant,

		rather than to compensate the plaintiff. In this, it is akin to punitive damages."].) A plaintiff may not recover both civil penalties *and* punitive damages "based upon substantially the same conduct." (*Troensegaard v. Silvercrest Industries, Inc.* (1985) 175 Cal.App.3d 218, 226 [striking punitive damages award where plaintiff also recovered civil penalties under Civil Code section 1794 because "in their effect *both* constituted punitive damages].) It seems unlikely that the Legislature intended for a plaintiff to be able to recover an unspecified amount of punitive damages under subsection (a), when it expressly provided for civil penalties not to "exceed two times the amount of actual damages," under subsection (c). Thus, the Motion is granted with leave so Plaintiff can allege the correct facts required for punitive damages against a corporate entity and to clarify that these damages are only sought in the fraud claim. Defendant is ordered to serve notice. Case Management Conference Continued to 11-2-2026 at 9:00 a.m.
6	Kelson vs. Marriott International, Inc. 2021-01213506	Motion for an Order to Show Cause Regarding Dismissal Pursuant to CCP 583.410 Court will hear argument.
7	Long Affair Carpet and Rug, Inc. vs. Morgan	Motions to Compel Further Responses to Form/Special Interrogatories and Production Before the Court is Cross-Defendant Long Affair Carpet and Rug, Inc. dba LA Carpet Motins to compel further responses and documents from Defendant and Cross-Complainant Lauren Morgan as to Special

	2023-01333968	Interrogatories, Set One, Nos. 86, 89, 92, 95, 98, 101, 104, 107, 110, 113, 119 and 120, Form Interrogatories - Construction, Set One, Nos. 305.1, 305.3, 309.1 and 313.1, Form Interrogatories - General, Set One, Nos. 7.1, 7.2, 9.1, 12.2 and 12.3, and Requests for Production of Documents, Set One, Nos. 37, 38, 39 and 45. <u>Merits</u> 1. <u>Interrogatories</u> A party may move to compel further responses to interrogatories on the grounds that the answer is evasive or incomplete, an exercise of the option to produce documents under Code of Civil Procedure section 2030.230 is unwarranted or the required specification of those documents is inadequate, and/or an objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).) With respect to interrogatories, the burden of showing good cause does not exist. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 541 ["While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory."].) On August 3, 2026, Morgan served further verified responses to every request identified in the three interrogatory motions. She contends that the Motions are therefore moot. On Reply, however, LA Carpet identifies specific requests that remain nonresponsive, specifically: Special Interrogatory No. 120, Form Interrogatory (Construction) Nos. 305.1(d) and 309.1(c), and Form Interrogatories (General) Nos. 7.1(d), 7.2(c), and 9.1(c). These all involve damages claims in the Cross-Complaint. At this stage in the litigation, Morgan must identify the scope of her damages. In answering interrogatories, a party must furnish information available from sources under the party's control: "[A party] cannot plead ignorance to information which can be obtained from sources under his control." (*Deyo v. Kilbourne* (1978) 84

Cal.App.3d 771, 782; *Regency Health Services, Inc. v. Sup.Ct. (Settles)* (1998) 64 Cal.App.4th 1496, 1504.)

Her responses to these damage-requests are evasive and non-responsive as to damages. She asserts incorporates the D'Ambra Construction proposal of $103,650.00, but then says that she "does not adopt that figure as a calculation in this response". Thus, the Court grants the Motions as to these remaining requests.

2. <u>Documents</u>

Code of Civil Procedure section 2031.220 requires a party responding to an inspection demand to respond with (1) a statement that it will comply, (2) a representation that it does not have the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.220.) An agreement to comply must be rather specific as to what is agreed to. It must state that the production and inspection will be allowed (in whole or in part); and that the documents or things in the demanded category that are in the responding party's possession, custody, or control will be produced. (Code Civ. Proc., § 2031.220.) On receipt of the response, the demanding party may move to compel further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

Here again, on August 3, 2026, Morgan served further verified written responses to every request identified in the documents motion. She contends that the Motion is therefore moot.

On Reply, however, LA Carpet advises the Court that no documents have actually been produced.

Thus, the Motion is granted as to the production of all responsive documents.

Morgan is therefore ordered to serve supplemental verified responses without objections to Special Interrogatory No. 120, Form Interrogatory (Construction) Nos. 305.1(d) and 309.1(c), and Form Interrogatories (General) Nos. 7.1(d), 7.2(c), and 9.1(c) within 20 days of notice of this Order.

Morgan is also ordered to serve all responsive documents to Nos. 37, 38, 39 and 45 within 20 days of notice of this Order.

		<u>Sanctions</u> LA Carpet is awarded total sanctions of $2,520.00, comprised of the modest amount of $630 per Motion, against Morgan. Within 30 days of the notice of ruling, Morgan shall pay Defendant a total **$2,520.00** to Bremer Whyte Brown & O'Meara LLP. LA Carpet is ordered to serve notice.
8	Pendleton vs. Ghost Digital 2023-01371092	Motion for Leave to File Amended Complaint Plaintiff Brett Pendleton's Motion For Leave To Amend Complaint is granted. California Rules of Court, rule 3.1324, requires a motion to amend include a copy of the proposed amendment or amended pleading, identify by page, paragraph, and line number any additions to and deletions from the prior pleading (Cal. Rules of Court, rule 3.1324(a)), and a supporting declaration that specifies: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).) Under Code of Civil Procedure section 473, subdivision (a)(1), "[t]he court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." While this discretion will generally be exercised liberally to permit amendment of the pleadings, the court acts within its discretion to deny an amendment where there has been a long delay in seeking the amendment and allowing the amendment would be prejudicial to the opposing side. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 488.) The Court finds Plaintiff has complied with Rule 3.1324. The motion is supported by a declaration from Plaintiff's counsel, and it includes a copy of the proposed amended pleading. By the amendment, Plaintiff

		seeks to correct certain typographical errors in the operative pleading. No opposition to the motion was filed. The Court finds it is in furtherance of justice to allow the filing of the proposed amended complaint. The Court notes that the proposed pleading states that a copy of the subject agreement is attached as Exhibit 1; however, nothing is attached to the proposed pleading. This defect should be corrected before the proposed pleading is filed. Plaintiff shall file the Second Amended Complaint no later than August 28, 2026, and serve it according to the Code of Civil Procedure. OSC/Service is off calendar. CMC set on 10-5-26 at 9:00 a.m.
9	R & M Veady, Inc. vs. Tran 2024-01448302	Motion for Terminating Sanctions Plaintiff R&M Veady, Inc's unopposed motion for terminating sanctions, issue and/or evidentiary sanctions is denied without prejudice. Plaintiff's request for monetary sanctions against Defendants Thuy Thi Tran and Thomas Quach is granted. Defendants are ordered to pay $1800.00 ($900 each) to Plaintiff within 20 days of the notice of this ruling. Terminating sanctions are only appropriate when a party persists in disobeying the court's orders such that the ultimate sanctions of dismissing the action or entering default judgment, etc. are justified. (*See Deyo v. Kilbourne* (1978) 84 Cal. App. 3d 771, 796.) Here, thus far, Defendants have only disobeyed the Court's 4/27/26 Order. Before imposing terminating, issue or evidentiary sanctions, the Court will allow Defendants one additional opportunity to comply with that order, and serve further responses to Plaintiff's discovery and pay the outstanding monetary sanctions. Accordingly, the Court reiterates its order from 4/27/26. In addition to the monetary sanctions imposed today, Defendants Thuy Thi Tran and Thomas Quach are ordered to serve further responses to Plaintiff's form interrogatories set one, and pay monetary sanctions to Plaintiff in the amount of $2700 total within 20 days of the notice of ruling. Plaintiff shall give notice of the ruling.

10	Thomas Vogele & Associates, APC vs. Kern River Corridor Endowment and Holding Co., 2025-01491400	Motion to Compel Further Responses to Form Interrogatories / Motion to Compel Production / Motion to Compel Response to Requests for Admissions Plaintiff Thomas Vogele & Associates, APC's motion to compel defendant Kern River Corridor Endowment and Holding Co. to provide further response to form interrogatories, set one, is granted. [ROA #58.] Defendant is to serve a verified, Code compliant response to form interrogatory no. 50.2 no later than August 28, 2026. Plaintiff is awarded sanctions of $750 against Defendant, to be paid to Plaintiff's counsel no later than August 28, 2026. Plaintiff's motion to compel Defendant to provide further responses to requests for admission, set one, nos. 51 and 52, is granted. [ROA #63.] Defendant is to serve verified, Code compliant responses without objection no later than August 28, 2026. Plaintiff is awarded sanctions of $750, to be paid to Plaintiff's counsel no later than August 28, 2026. Plaintiff's motion to compel Defendant to provide further responses to requests for production, set one, nos. 1-17, is granted. [ROA #54.] Defendant is to provide verified, Code compliant responses without objection no later than August 28, 2026. Plaintiff is awarded sanctions of $1,225 against Defendant, to be paid to Plaintiff's counsel not later than August 28, 2026. **Facts** This is an action by a law firm to recover attorneys' fees of about $4 million it contends are due under a retainer agreement based on a settlement obtained for its client, defendant Kern River Corridor Endowment and Holding Co. ("KRC"). Plaintiff alleges that it had prior experience and expertise in the particular type of trespass dispute between KRC and Chevron, so KRC retained Plaintiff to represent KRC on the existing complaint and possibly in negotiations with Chevron. [Complaint (ROA # 2), ¶¶ 7-11.] According to Plaintiff, after almost four years of work, in 2023, KRC reached a settlement with Chevron for Chevron to pay $11 million and then $50,000 annually. This agreement was orally approved by KRC's representative to Plaintiff, Fallgatter, confirmed in writing, and

approved by KRC's board of directors. The court was notified of the settlement and the parties ceased active litigation on that basis. [Complaint, ¶¶ 17-19.]

Plaintiff then worked with Chevron's counsel to document the settlement, for August 2023 into April 2024 but was stymied by Fallgatter (who was a member of the KRC board and its general counsel) and then ultimately discharged by KRC on 4/19/24 and refused to pay it the contingency amount due based on the 2023 settlement amount of $11 million. [Complaint, ¶¶ 14, 15, 21-23.]

Plaintiff asserts three cause of action for: (1) declaratory relief; (2) breach of contract; and (3) breach of the implied covenant of good faith and fair dealing.

In its answer, Defendant asserts affirmative defenses of unclean hands ("acted inequitably by prioritizing his own financial interest over the client's instruction and best interest") and offset. [Answer (ROA #11) fifth and seventh affirmative defenses.]

The Discovery at Issue

On 9/22/25, Plaintiff served the form interrogatories, set one, RFPs, set one, and RFAs, set one on Defendant. [Lewis Decl. (ROA #50), ¶ 4 and Ex. 1.]

Defendant concededly did not serve responses by the due date of 10/24/25. [*Id.*, ¶ 5; Vercoski Decl. (ROA #157), ¶ 4.] Initially, the due date was missed due to an in office error. [*Id.*] Then, there was further delay as the person necessary to review and verify the responses was ill – receiving treatment for cancer. [*Id.*, ¶ 5.]

Eventually responses were served on 1/2/26. [Vercoski Decl., ¶7; Lewis Decl., ¶¶ 7-14 and Exs. 7-9.] Supplemental responses were then served on 2/27/26. Vercoski Decl., ¶ 8; Lewis Decl., ¶¶ 16-19 and Exs. 15-17.] These included a privilege log identifying a settlement agreement between Kern River and Chevron being withheld on the ground of confidentiality. [Lewis Decl., ¶ 21 and Ex. 16.] The privilege log did not identify any communications withheld based on attorney-client privilege or work product protection responsive to the discovery requests at issue in these motions. [*Id.*, ¶ 22.]

The pending motions were filed on 3/11/26. After this, the parties stipulated to a protective order, under which Defendant produced to Plaintiff the settlement agreement between Kern River and Chevron. [Vercoski Decl., 10.]

Motion to Compel Further Responses to Form Interrogatory
Legal Standard

Each answer in the response to an interrogatory must be "as *complete* and *straightforward* as the information reasonably available to the responding party permits. If an interrogatory cannot be answered completely, it shall be answered to the extent possible." Code Civ. Proc.§ 2030.220(a), (b) (emphasis added). "Parties must state the truth, the whole truth, and nothing but the truth in answering written interrogatories." *Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 76 (internal quotes omitted); *see also* Code Civ. Proc. § 2023.010(f) (evasive response is ground for *sanctions*).

Where the question is specific and explicit, an answer that supplies only a portion of the information sought is improper. It is also improper to provide "deftly worded conclusionary answers designed to evade a series of explicit questions." *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.

> A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. (Hunter v. International Systems & Controls Corp., supra, 56 F.R.D. 617, 625). Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response. (See C.E.B., California Civil Discovery Practice, Section 8.54 (C.E.B.1975).)

Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783.

If a party to whom interrogatories are directed fails to serve a timely response, that party waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). Code Civ. Proc. §2030.290(a). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:
(1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. Code Civ. Proc., § 2030.290(a)(1), (2).

A party may move to compel further responses to interrogatories on the grounds that the answer is evasive or incomplete. Code Civ. Proc. § 2030.300(a)(1). Prior to filing such a motion, the moving party must meet and confer with the responding party in a reasonable and good faith attempt to informally resolve each issue that would be presented by the motion. Code Civ. Proc. § 2030.300(b); § 2016.040. In the absence of agreement extending the time to file, a motion to compel further responses must be filed no more than 45 days (+ time for service by mail, email, etc.) after the verified responses, or verified supplemental responses, are served. Code Civ. Proc. §§ 2030.300(c), 2016.50.

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal. 4th 245, 255.

Discussion

> **Form Interrogatory No. 50.2**
> Was there a breach of any agreement alleged in the pleadings? If so, for each breach describe and give the date of every act or omission that you claim is the breach of the agreement.
>
> **Supplemental Response to Form Interrogatory No. 50.2**
> In its pleadings, Plaintiff alleges that 'KRC breached its obligations under the retainer agreement by failing and refusing to pay for legal services earned and costs incurred by TVA on KRC's behalf, despite TVA's demand.' (Complaint, ¶ 22.) Plaintiff's Second Claim for Relief is for Breach of Contract against all Defendants. In Defendant's Verified Answer to Plaintiff's Complaint, there are no affirmative defenses alleged for Breach of Contract. Furthermore, subsequent to the filing of Defendant's Verified Answer, in complete compliance with the terms of the contract Plaintiff fully paid Plaintiff for the legal services performed by Plaintiff and the costs incurred by Plaintiff.

[*See* Separate Statements (ROA ## 46, 147.]

Defendant's explanation that *it* did not allege a contract is insufficient to relieve of its obligations to give a straightforward response. Plaintiff alleged a contract, and a breach of a contract; it is entitled to discovery as to Defendant's contentions and supporting facts about those allegations.

The motion to compel further response is granted.

Motion to Compel Further Responses to RFAs
Legal Standard

> (a) Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits.
> (b) Each answer shall:
> (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.
> (2) Deny so much of the matter involved in the request as is untrue.
> (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.

Code Civ. Proc. § 2033.220.

If a party to whom requests for admission are directed fails to serve a timely response, it waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver. Code Civ. Proc. § 2033.280(a).

After receiving responses to requests for admission that a party finds evasive or incomplete a party may move for further responses. Code Civ. Proc. §2033.290(a). The motion must be accompanied by a declaration showing a good faith attempt to meet and confer and a separate statement. Code Civ. Proc. §2033.290(b).

Discussion

Request for Admission No. 51

Admit that the settlement agreement with Chevron granted Chevron the right to continue its operations on the Kern River preserve.

Supplemental Response to Request for Admission No. 51
Defendant objects to this Request on the grounds that it seeks information that is not relevant to the claims or defenses in this matter. Defendant further objects on the grounds that the Request seeks information barred by the Parol Evidence Rule. Defendant further objects on the grounds that the Request seeks information subject to a confidentiality agreement between Defendant and Chevron. Defendant identified the settlement agreement in its privilege log. Defendant is not obligated to provide a response because answering this request would disclose information subject to the confidentiality provisions of the settlement agreement.

Request for Admission No. 52
Admit that the settlement agreement with Chevron granted Chevron the right to record a document memorializing its operations on the Kern River preserve.

Supplemental Response to Request for Admission No. 52
Defendant objects to this Request on the grounds that it seeks information that is not relevant to the claims or defenses in this matter. Defendant further objects on the grounds that the Request seeks information barred by the Parol Evidence Rule. Defendant further objects on the grounds that the Request seeks information subject to a confidentiality agreement between Defendant and Chevron. Defendant identified the settlement agreement in its privilege log. Defendant is not obligated to provide a response because answering this request would disclose information subject to the confidentiality provisions of the settlement agreement.

[*See* Separate Statements (ROA ## 52, 151).]

These responses are almost entirely objections. But Defendant waived its objections by its untimely responses. In its opposition, Defendant asks to be relieved of that waiver. But Defendant has not actually moved for relief.

Plaintiff points to its production of the settlement agreement with Chevron and asserts the motion thus moot. First, Plaintiff disputes this production. Second, an admission is more that evidence. The motion is not moot.

Accordingly, the motion to compel further responses to the RFAs is granted.

Motion to Compel Further Responses to RFPs
Legal Standard
Code Civ. Proc. section 2031.310 provides, in relevant part, that "any party may obtain discovery" by "inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action." Code Civ. Proc., § 2031.010(a). Section 2031.220 requires a party responding to an inspection demand to respond with (1) a statement that it will comply, (2) a representation that it does not have the ability to comply, or (3) an objection.

If the party responds with a statement of compliance, it must specify whether production "will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." Code Civ. Proc., § 2031.220.

If the party responds with a representation that it does not have the ability to comply, it "shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand." Additionally, it "shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." Code Civ. Proc., § 2031.230.

Finally,

> (a) If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.

		(b) If the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following: (1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made. (2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated. If an objection is based on a claim that the information sought is protected work product under Chapter 4 (commencing with Section 2018.010), that claim shall be expressly asserted. (c)(1) If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log. Code Civ. Proc. § 2031.240. If a party to whom an RFP is served fails to serve a timely response to it, he waived any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver. Code Civ. Proc. § 2031.300(a). Where there has been a response to RFPs that the propounding party finds inadequate, then the Code provides for a motion and order compelling production upon a showing of good cause, prior meeting and conferring, and the filing of a separate statement. Code Civ. Proc. § 2031.310(b)(1) and (2); CRC 3.1345; Cal. Prac. Guide, Civil Procedure before Trial §8:1494.1. In order to meet the burden of showing good cause, the moving party must show: (1) relevance to the subject matter and (2) specific facts justifying discovery. Weil & Brown, Cal. Civ. Proc. Before Trial, 8:1495.6 (The Rutter Group 2011). Declarations are generally used to show good cause, and they must contain specific facts and not mere conclusions. *Id.* at 8:1495.7. If the moving party demonstrates good cause, then the opposing party must justify any objections. *Kirkland v Superior Court* (2002) 95 Cal. App. 4th 92, 98. **Discussion**

		Plaintiff has moved to compel further responses to RFP nos. 1-17. Plaintiff shows good cause; and Defendant raises no objection on this point. [*See* Motion MPA (ROA #54) at 11.] Defendant's RFP responses all include (or consist entirely of) objections. Again, though, Defendant waived its objection by serving untimely responses. Nor has it brought a motion for relief – or justified its objections and responses. Rather, in opposition Defendant contends that it has produced all the documents it has. [Opp. (ROA #153) at 5.] Defendant asserts that: > To the extent this Request seeks documents beyond those already produced, no further response is required because such documents either (1) do not exist, (2) have already been produced, or (3) are not relevant to the claims or defenses in this action and are not proportional to the needs of the case. [Defendant's Separate Statement (ROA #155).] But if this is true, Plaintiff is entitled to a verified, Code compliant response that says this. The motion to compel further responses to the RFPs is granted. Plaintiff to give notice.